

of the Philippines
CITY OF DAVAO
Office of the City Council
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ORDINANCE NO. 123

AN ORDINANCE TO REVIS, AMEND AND COMPILE ALL EXISTING ORDINANCES ON MUNI-
CIPAL LICENSES, FEES, AND TO FIX THE LICENSE FEES ON NEW BUSINESSES,
OCCUPATIONS AND TRADES IN THE CITY OF DAVAO.

Be it enacted by the City Council, City of Davao, that:

Section 1. - Municipal License Fees for Businesses, Trades and Occupations.

Section 1. - Permit and License: - It shall be unlawful for any person,
partnership or corporation to conduct, or engage in, operate or manage any
business, trade, or occupation without first having secured a permit there-
from from the City Mayor, and the necessary license fees from the City Trea-
surer. Provided that all applications for permits on any business which
require the upkeep of sanitation in accordance with the sanitation ordinance
approved by the City Health Officer or his duly authorized represen-

Section 2. Fees: - The City Treasurer shall collect, for the license
provided for hereunder, annual fees, which may be paid quarterly as follows:

1. Stevedoring (See definition of terms) ₱ 200.00 p.a.
2. Corn Shellers:

(a) With 1/2 to 2-1/2 h. p.	60.00 "
(b) With more than 2-1/2 but not exceeding 6 h. p.	75.00 "
(c) Over 6 h. p. but not exceeding 10 h. p.	100.00 "
(d) Over 10 h. p. but not exceeding 20 h. p.	125.00 "
(e) Over 20 h. p. to 40 h. p.	150.00 "
(f) Over 40 h. p. to 50 h. p.	200.00 "
(g) Over 50 h. p. to 70 h. p.	250.00 "
(h) Over 70 h. p. to 100 h. p.	300.00 "
(i) Over 100 h. p. to 125 h. p.	350.00 "
(j) Over 125 h. p.	400.00 "
3. Deep Sea Fishing operated within the territorial waters of
Davao City and/or having with its base of operation any
point in Davao City.

Any person, company, partnership, corporation,
association, or enterprise engaged in deep sea fishing
and employing any of the fishing methods or technique
employing two (2) or more persons in the operation of
same, shall pay the following annual fees, which may be
paid quarterly, viz:

Ordinance No. 123, series of 1960, continued:

- (a) Any "basnig", "payao", "manchuria", "hook and line", "cobcob", "simbada", "surambao", "sahid", "cabyao", "patuloy", "tuna fishing", or any other kind of fishing in deep sea employing similar methods or technique and employing two (2) or more but not exceeding four (4) persons, operating within the territorial waters of Davao City, of having with its base of operation any point in Davao City ₱ 40.00 p.a.
- (b) Of the deep sea fishing mentioned under (a) hereof, employing more than four (4) persons but not exceeding eight (8) persons 60.00 "
- (c) Of the deep sea fishing mentioned under (a) hereof, employing more than eight (8) but not exceeding twelve (12) persons 100.00 "
- (d) Of the deep sea fishing mentioned under (a) hereof, employing more than twelve (12) persons 150.00 "
- (e) Permit fee for any of the above-mentioned fishing business which shall be paid on or before operating said business and every January thereafter 5.00 "
4. Blacksmith shop:
 - (a) Less than three (3) helpers 40.00 "
 - (b) From three (3) to five (5) helpers 50.00 "
 - (c) More than five (5) helpers 60.00 "
5. Foundries:
 - (a) For iron and/or bronze:
 1. With capacity of less than one (1) ton daily 300.00 "
 2. With capacity of one (1) or more tons daily 400.00 "
 - (b) For iron and aluminum:
 1. With capacity of less than one (1) ton daily 200.00 "
 2. With capacity of one (1) ton or more daily 300.00 "
6. Manufacturing or construction shop for:
 - (a) Mechanical devices, instruments, apparatus, using hard metals and woods combined, other than foundry shop 80.00 "
 - (b) Mechanical devices, instruments, apparatus and other hard metals other than foundry shop 100.00 "
 - (c) Iron grills and fences 100.00 "
 - (d) Belts and harness 50.00 "
 - (e) Carts and/or calesas 50.00 "
 - (f) Christmas tree, and/or brooms or dusters 40.00 "
- X (9) As amended by Ord. No. 131, S. 1961, ₱
7. Manufacture of tin cans 300.00 "
8. Stripping machines 300.00 "

X - Handles for axes, etc: (1) w/o machinery - 60.00 ₱
 (2) w/machinery - 120.00 ₱

Ordinance No. 123, series of 1960, continued:

9. Repair, Assembling and/or construction shop for:

A. - Without helpers:

(a) Bicycles	50.00 p.a.
(b) Automobiles, jeeps, trucks or other motor engines	50.00 "
(c) Launches	50.00 "
(d) Electrical devices	50.00 "
(e) Radios	50.00 "
(f) Watches	50.00 "
(g) Umbrellas (with or without helpers)	40.00 "
(h) Schedule under (b) including painting and/or upholstery	150.00 "

B. - With helper or helpers:

(a) Bicycles	80.00 "
(b) Automobiles, jeeps, trucks or other motor engines	200.00 "
(c) Launches	100.00 "
(d) Electrical devices	100.00 "
(e) Radios	100.00 "
(f) Watches	100.00 "
(g) Schedule under (b) including painting and/or upholstery	280.00 "

10. Vulcanizing and/or Recapping Plants or Establishments:

(a) Vulcanizing and/or recapping plants of establishments using machine and/or electric power and using one (1) or more "molds" for recapping and/or vulcanizing	200.00 "
(b) Vulcanizing within the poblacion, Sta. Ana, Talomo, Toril, Daliao, Mintal and Calinan	120.00 "
(c) Vulcanizing in other places other than the above	60.00 "

11. Welding shop:

A. - With machinery moved by electricity and/or motor power:

(a) With less than three (3) Helpers	100.00 "
(b) With three (3) to five (5) helpers	200.00 "
(c) More than five (5) helpers	400.00 "

B. - Without machinery (moved by hand or man-power):

(a) With less than three (3) helpers	50.00 "
(b) With three (3) to five (5) helpers	80.00 "
(c) More than five (5) helpers	100.00 "

12. Plumber:

(a) Without shop	50.00 "
(b) With shop	100.00 "

13. Silversmith shop.....	50.00 "
14. Nickeling or gold plating shop	50.00 "
15. Goldsmith	50.00 "

Ordinance No. 123, series of 1960, continued:

16. Engraving by electrical instrument or mechanical devices	50.00	p.a.
17. Tinsmith shop:		
(a) Without helper	100.00	"
(b) With less than three (3) helpers	120.00	"
(c) With three (3) to five (5) helpers	150.00	"
(d) Over five (5) helpers	200.00	"
18. Plastic lamination and/or photostat or white printing establishment	50.00	"
19. Plastic lamination without photostat	30.00	"
20. Manufacture of construction of:		
(a) Pots, tableware, etc. out of iron, aluminum or other materials:		
1. With less than five (5) helpers	100.00	"
2. With more than five (5) helpers but not exceeding ten (10) helpers	150.00	"
3. With more than ten (10) helpers	200.00	"
(b) Pots, jars, receptacles out of earth or clay:		
1. With not more than five (5) helpers	50.00	"
2. With more than five (5) helpers but not exceeding ten (10) helpers	75.00	"
3. With more than ten (10) helpers	100.00	"
(c) Statues, ornamental stones, etc	50.00	"
(d) Sepulchers, tombs or monuments for the dead	50.00	"
(e) Manufacture of ceramics and/or hollow blocks	200.00	"
21. Manufacture or repair of slippers	30.00	"
22. Repair of shoes:		
(a) Without machinery	30.00	"
(b) With machinery	100.00	"
23. Manufacture of shoes, with or without contract:		
(a) Without machinery	100.00	"
(b) With machinery	200.00	"
24. Manufacture of wooden shoes:		
(a) Using machine or electrical current or mechanical devices	50.00	"
(b) Using hand drawn or operated tools or devices	20.00	"
25. Tanneries	50.00	"
26. Money lenders	200.00	"
27. Pawn shop with capital of:		
(a) Over ₱200,000.00	1,000.00	"
(b) ₱100,000.00 to ₱200,000.00	800.00	"

Ordinance No. 123, series of 1960, continued:

(c) ₱50,000.00 to less than ₱100,000.00	₱ 600.00 p.a.
(d) ₱25,000.00 to less than ₱50,000.00	500.00 "
(e) ₱15,000.00 to less than ₱25,000.00	400.00 "
(f) Less than ₱15,000.00	300.00 "

28. Contractors:

(a) Artesian well contractor	50.00 p. a.
(b) Building contractor	200.00 "
(c) Logging contractor	150.00 "
(d) Irrigation contractor	50.00 "
(e) Road and bridge contractor	200.00 "
(f) Filling or supplying sand, gravel and earth	200.00 "
(g) Waterworks contractor	50.00 "
(h) Labor contractor (bodega or wharf)	100.00 "
(i) Cutting logs into boards	100.00 "
(j) Battery charges	50.00 "
(k) Washing or greasing motor vehicles	50.00 "
(l) Aguias Contractor	30.00 - Ord. 17, 1965

29. Laundry Establishment:

(a) With use of steam	100.00 p.a.
(b) Without steam	50.00 "
(c) With use of machinery	120.00 "
(d) Without machinery	50.00 "

30. Dressmaking and/or Tailoring Shop:

(a) With three (3) machines or less	35.00 p.a.
(b) With four (4) to six (6) machines	60.00 "
(c) With seven (7) to ten (10) machines	80.00 "
(d) With more than ten (10) machines but not exceeding fifteen (15) machines	150.00 "
(e) For every additional machine in excess of fifteen (15) machines	10.00 "

31. For every registration of sewing machines for business

32. Hatter or sombreria and/or bleacher shop	1.00 "
33. Each hatmaker	30.00 "
34. Millinery shop	25.00 "
35. Mat weaver	10.00 "
36. Barbershop:	25.00 "

(a) Within the poblacion, Sta. Ana, Daliao, Toril, Talomo, Mintal and Calinan, per chair

(b) In other parts of the City, per chair

37. Traveling Barber	6.00 "
38. Massagist in barber shop	10.00 "
39. Beauty Parlor or Shop:	

(a) With three (3) or less helpers	60.00 "
(b) With more than three (3) but not exceeding five (5) helpers	80.00 "
(c) With more than five (5) helpers	100.00 "
(d) Traveling beautician	20.00 "

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Ordinance No. 123, series of 1960, continued:

40. Vaciador:

- (a) TravelingP 6.00 p.a.
(b) Using electrical or mechanical devices
(fixed) 30.00 "

41. Coiffurist 30.00 "
42. Manicurist 20.00 "
43. Florist selling leis bouquets, garlands,
natural flower only 50.00 "
44. Florist selling wreaths (artificial) 30.00 "
45. Bookbinding establishment (exclusive) 50.00 "
46. Lithographer or engraver 50.00 "
47. Printing or publishing establishment, except
when solely dedicated to publishing newspapers
and magazines :... *Amended by Ord. no. 267,
S. 1960.*
(a) Without linotype 50.00 p.a.
(b) With linotype 400.00 "

48. Sign painting establishment 50.00 "
49. Photo studios or establishment:

A. - With gallery, electric, or otherwise:

- (a) Within the poblacion and Sta. Ana 120.00 p.a.
(b) Outside the poblacion and Sta. Ana 80.00 "

B. - With photographic enlargements:

- (a) Within the poblacion and Sta. Ana 150.00 p.a.
(b) Outside the poblacion and Sta. Ana 100.00 "

C. - Traveling photographer 20.00 "

50. Funeral establishment:

- (a) With embalming parlor, depositing corpses
and conducting to cemetery 300.00 p.a.
(b) Allowing depositing corpses and conduct-
ing to cemetery 150.00 "
(c) Rendering funeral services only, such as
conducting dead bodies in a funeral car
to cemetery 100.00 "

51. Agencies, brokers, etc.:

- A. - Airline establishment 500.00 p.a.
B. - Commercial broker 200.00 "
C. - Customs or Immigration broker 160.00 "
D. - Employment agency 150.00 "
E. - Dealer in Securities 100.00 "
F. - Film Exchange broker, lessor or
distributor 160.00 "
G. - Immigration broker 160.00 "
H. - Passenger recruiting agent 100.00 "
I. - Real Estate Broker 200.00 "
J. - Shipping establishment 500.00 "
K. - Recruiting agent 50.00 "
L. - Stockbroker 160.00 "
M. - Mutual Fund Company 200.00 "
N. - Security Guard and/or Detective Agency 200.00 *Ord. 17, 1965*

Ordinance No. 123, series of 1960, continued:

52. Dealers in:

- A. - (1) Automobiles, other motor vehicles and logging equipment:
- (a) With a gross annual income of less than ₱1,000,000.00 ₱ 500.00 p.a.
 - (b) With a gross annual income of ₱1,000,001.00 to ₱1,500,000.00 1,000.00 "
 - (c) With a gross annual income of ₱1,500,001.00 to ₱2,000,000.00 1,500.00 "
 - (d) With a gross annual income of over ₱2,000,000.00 2,000.00 "
- (2) Farm equipment and marine engines 500.00 "
- (3) Bicycle, motor-cycle, tricycle, out-board motor and scooters 400.00 "

Note: The basis for the computation of the annual tax for Item 52 (1) a, b, c & d, is from the gross sales for the preceding calendar year.

- B. - Firearms ₱ 200.00 p.a.
- C. - Radios 150.00 "
- D. - General merchandise, wholesale and retail except hardware and drugs or medicines 200.00 "
- E. - General merchandise, (wholesale) only 150.00 "
- F. - Hardware, (exclusive) 300.00 "
- G. - Drugs, medicines, perfumes and toilet articles:
- (a) Wholesale and/or retail 300.00 "
 - (b) Retail only 100.00 "
- H. - General merchandise, retail only 60.00 "
- I. - Peddlers of merchandise using trucks or other vehicles 100.00 "
- J. - Peddler of general merchandise carried by other means of transportation 40.00 "
- K. - Books and stationary supplies store 100.00 "
- L. - Foreign Liquors:
- (a) Retail and/or wholesale 400.00 "
 - (b) Retail only 280.00 "
- M. - Foreign fermented liquor, including beer, retail and/or wholesale 500.00 "
- N. - Native fermented liquor, including beer:
- (a) Wholesale and retail or wholesale only 600.00 "
 - (b) Retail only 200.00 "
- O. - Native wine:
- (a) Wholesale and retail 280.00 "
 - (b) Retail only 160.00 "
 - (c) Peddler by trucks, launch or motor vehicles 200.00 "
 - (d) Peddler carried by other means of transportation 60.00 "

(Amended by Ord. 213, s.c. 1960. P.)

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Ordinance No. 123, series of 1960, continued:

P. - Sale of liquor or wine in clubs:

- (a) Sale of liquor or wine in club for members only ₱ 60.00 p.a.
 (b) Sale of liquor or wine in club for non-members 120.00 "

Q. - Sale and/or agency of Sweepstakes with establishment or stand 60.00 "

R. - Jewelry 200.00 "

S. - Lumber and/or log dealer 200.00 "

T. - Buying and/or selling goats, pigs and sheep 40.00 "

U. - Buying and/or selling cattle, carabaos and horses 80.00 "

V. - Sale of grated coconuts 40.00 "

W. - Sale of optical goods and appliances without previous eye examination 300.00 "

X. - Peddler of optical goods and appliances without previous eye examination 300.00 "

Y. and Z. - (a) Office equipment 300.00; (b) Household appliance 200.00 (c) Electric supply 150.00 - Ord. 17, 65

53. Manufacture and/or sale of:

Amended by Ord. 123, 1960

A. - Candy, chocolate, coffee, sweets, popcorn and/or other similar confections: *Amended by Ord. no. 78, 5. 1962 Processing of coffee & cacao*

- (a) Without machinery 100.00 p.a.
 (b) With machinery 150.00 "
 (c) Mascada or chewing tobacco 200.00 "

B. - Coconut oil, with machinery *Amended by Ord. no. 123, 1960* 100.00 "

C. - Ice cream and/or ice candy 150.00 "

D. - Ice 300.00 "

E. - Misua 200.00 "

F. - Mique or odon 200.00 "

G. - Native wine (distillery) 300.00 "

H. - Compounder of wine or distilled spirit 150.00 "

I. - Salt 50.00 "

J. - Soap or candle 300.00 "

K. - Soft drinks and other aerated water 300.00 "

L. - Taju:

(a) With one (1) to two (2) cooking machines 50.00 "

(b) With three (3) to four (4) cooking machines 75.00 "

(c) With over four (4) cooking machines 100.00 "

M. - Tajuri 240.00 p.a.

N. - Toyo 240.00 "

O. Tubalina, Tapay or Basi 50.00 "

P. - Vinegar 50.00 "

Q. - Maker or manufacturer of Sausage (choriso) 10.00 "

R. - Maker or manufacturer of balut 8.00 "

S. - Manufacture of Twine and/or Rope :

(a) With less than five (5) helpers with machinery 100.00 p.a.

(b) With less than five (5) helpers without machinery 50.00 "

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Ordinance No. 123, series of 1960, continued:

(c)	With five (5) to ten (10) helpers with machinery	150.00 p.a.
(d)	With five (5) to ten (10) helpers without machinery	75.00 "
(e)	With more than ten (10) helpers with machinery	200.00 "
(f)	With more than ten (10) helpers without machinery	100.00 "
T.	Manufacture and/or dealer of fireworks	200.00 "
54.	Vendors of: <i>add: N.W. (See Ord. No. 150, D. 1960) A-A Council Ord 347, 1964</i>	
A.	Chicken	12.00 p.a.
B.	Fish (in the market)	12.00 "
C.	Firewood:	
	(a) Wholesale	50.00 p.a.
	(b) Retail	25.00 "
D.	Leaf Tobacco (retail)	12.00 "
E.	Leaf Tobacco (wholesale)	50.00 "
F.	Manufactured tobacco, cigarettes, local or foreign:	
	(a) Wholesale including peddler by trucks per unit	100.00 "
	(b) Retail	20.00 "
G.	Manufacture of picadora and cigarettes	200.00 "
H.	Meat Vendor	24.00 "
I.	For every kilo or carabao or horse meat for sale	1.00
J.	For every kilo of beef or pork or any other four-footed animals <i>(Amended by Res. 1014, 1964. to P.O. 06)</i>	0.10 "
K.	Nipa	25.00 "
L.	Rattan and other minor forest products	25.00 "
M.	Tuba	40.00 "
N.	Salted and Dried Fish:	
	(a) Wholesale and retail	150.00 p.a.
	(b) Wholesale only	100.00 "
	(c) Retail only	60.00 "
	(d) Peddler by truck or other vehicle (whole-sale)	100.00 "
	(e) Peddler by other means	40.00 "
55.	Peddler, hawker, hustler, not including huscheters, or peddlers who sell:	
	(a) goods	30.00 p.a.
	(b) fruits	12.00 "
	personally carried by the husksters or peddlers.	
56.	Peddler of refreshment, ice candy, etc.	10.00 p.a.
57.	Peddler of distilled, manufactured or fermented liquor by trucks or other motor vehicles	100.00 "
58.	Drying, curing and/or salting fish	50.00 "
59.	Sari-sari store	30.00 "
60.	Merchant engaged in sale of ice	100.00 "

Ordinance No. 123, series of 1960, continued:

61. Cold storage	₱ 120.00 p.a.
62. Bakeries:	
1. (a) Using truck or other vehicles for distribution	300.00 "
(b) Using bicycles for distribution	200.00 "
(c) Without distribution facilities	150.00 "
(d) Using stove as oven	50.00 "
2. Biscuit Factory	300.00 "
63. Cafeterias:	
(a) Conducted in restaurant or refreshment parlor	50.00 p.a.
(b) In places other than markets or restaurants and refreshment parlors	25.00 "
(c) In the market	20.00 "
64. Carinderias:	
(a) First class, with eight (8) or more dining tables	80.00 p.a.
(b) Second class, with four (4) to seven (7) dining tables	50.00 "
(c) Third class, with less than four (4) dining tables	30.00 "
(d) With sumsuman only	20.00 "
(e) Caterer	30.00 "
65. Refreshment Parlors:	
(a) Within the poblacion and Sta. Ana	50.00 "
(b) Outside of the poblacion	40.00 "
66. Restaurant or Pansiterias:	
(a) One floor	500.00 p.a.
(b) Two floors	600.00 "
(c) Two floors with air conditioning facilities	700.00 "
67. Waitresses in bars, restaurant, carinderias, cafeterias and other similar establishments	4.00 "
68. Boarding houses and dormitories:	
(a) For less than ten (10) persons or beds	160.00 p.a.
(b) For ten (10) to fifteen (15) persons or beds	240.00 "
(c) For over sixteen (16) to twenty-five (25) persons or beds	300.00 "
(d) For over twenty-five (25) persons or beds	360.00 "

Ordinance No. 123, series of 1960, continued:

69. Lodging Houses or Inns:

- (a) For less than ten (10) persons or beds P 160.00 p.a.
- (b) For ten (10) to fifteen (15) persons
or beds 240.00 "
- (c) For over sixteen (16) to twenty-five (25)
persons or beds 320.00 "
- (d) For over twenty-five (25) persons of beds 400.00 "

70. Hotels and/or Motels:

- (a) For less than ten (10) persons or beds 200.00 p.a.
- (b) For ten (10) to seventeen (17) persons
or beds 400.00 "
- (c) For eighteen (18) to twenty-four (24)
persons or beds 860.00 "
- (d) For twenty-five (25) to thirty (30) persons
or beds 1,200.00 "
- (e) For over thirty (30) persons or beds 1,500.00 "

71. Clubs:

- (a) First class 400.00 p.a.
- (b) Second class 300.00 "
- (c) Third class 200.00 "
- (d) Fourth class 150.00 "

Provided, however, that when said clubs are run on a non-profit basis and used exclusively by the club members and their guest, the following annual fees shall be paid:

- 1st class club P 80.00
- 2nd class club 60.00
- 3rd class club 40.00
- 4th class club 20.00

And provided, further, that upon application for a permit to operate any of said club from the authorities concerned, the fact of its being a non-profit venture maintained exclusively for the use of the members shall be properly certified to in an affidavit submitted for the purposes and signed by the President and Treasurer of the club.

72. Clubs:

- (a) Night Clubs *Amended by Ord. 17, 1965 to \$1,000.00 p.a.* P 1,200.00 p.a.
- (b) Day and Night Clubs *Amended by Ord. 17, 1965 to \$1,500.00* 500.00 "
- (c) *Super Clubs & Family Clubs - Ord. 17, 1965* 500.00 "

- 73. Cabarets 1,500.00 "
- 74. Cabaret dancers 20.00 ea.p.a.
- 75. Public Dancing Schools 120.00 p.a.
- 76. Acrobatic or Equestrian Company 50.00 "
- 77. Acrobatic or Equestrian Company of Forest
Animals 20.00 "

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Ordinance No. 123, series of 1960, continued:

78. Boxing Stadium	800.00 p.a.
A. Boxing or Wrestling Exhibitions:	
(a) For promoters and persons or entities conducting such exhibitions:	
(1) If the seating capacity of the building or stadium is for less than 4,000 persons	200.00 p.a.
(2) If the seating capacity of the building or stadium is for more than 4,000 persons	400.00 "
(b) Professional boxers, professional wrestlers, boxing or wrestling managers, match makers, physicians and referees, each	10.00 "
(c) Time keepers, announcers, trainers and seconds	20.00 ea.p.a.
79. Boxing Stadium, per day	50.00 p.d.
80. Cinematograph or movie houses: - <i>Amended by Ord. No. 147, S. 1960.</i>	
(a) Within the poblacion and Sta. Ana	400.00 p.a.
(b) Elsewhere other than in Item "(a)" above	200.00 "
81. Itinerant cinematograph for advertising purposes (Itinerant license)	
(a) Daily	10.00 p.d.
(b) Monthly	200.00 p.m.
Provided that if said cinematograph is showing within the radius of 200 meters from any established cinematograph	30.00p.d.
82. Circus or similar shows	50.00 p.d.
83. Conducting circus parades, manageries, etc.	10.00 " "
84. Concert Hall	100.00 " "
85. Exhibition of Forest born animals	20.00 " "
86. Feria	10.00 " "
87. For each unit of game displayed inside the feria	2.00 " "
88. Going around the different streets on autos or trucks for advertisement of cine films, etc.:	
(a) Daily	2.00 p.d.
(b) Monthly	25.00 p.m.
89. Merry-go-around, permanent (complete)	400.00 p.a.
90. Merry-go-around with itinerant license permit	10.00 p.d.
91. Museum	100.00 p.a.
92. Other spectacles similar to merry-go-around	10.00 p.d.
93. Public bath	20.00 p.a.
94. Shooting gallery	10.00 p.d.
95. Theatrical function with vaudaville	10.00 p.d.
96. Theatrical functions:	
(a) Advertising business firms outside the theater building	10.00 p.d.
(b) Amateur program or stage shows for advertising purposes	20.00 p/d.

Ordinance No. 123, series of 1960, continued:

- (c) Advertising by slides *Amended by Ord. No. 147, s. 1960* 150.00 p.a.
97. Theaters other than cine 10.00 p.d.
98. Billiard Hall, for every table 40.00 p.a.
99. Pool Hall, for every table 20.00 p.a.
100. Proprietorship of Bowling Alley, per alley 80.00 p.a.
101. Cockpits:
- (a) In the poblacion and Sta. Ana 2,500.00 p.a.
- (b) In Mintal, Toril, Talomo, Ilang, Sasa, Daliao, Calinan, Baracatan, Burawan, Lasang and Mulig 300.00 p.a.
- (c) In other barrios or sitios not mentioned above 200.00 "
- (d) For every winning cock in the cockpit 1.00
102. Mahjong: *(Amended by Ord. No. 285-A s. 1969) (Amended by Ord. No. 519B) and*
- A. Regular:
- (a) For one table only 200.00 p.a.
- (b) For each additional table 80.00 "
- B. Special:
- (a) For one table only 500.00 p.a.
- (b) For each additional table 100.00 "
103. Panguingue:
- (a) For one table only 100.00 p.a.
- (b) For each additional table 20.00 "
104. Tax on the business of land transportation. *Repealed by Ord. No. 1142, s. 1960*
- There shall be imposed and collected a tax of two (2%) per cent on the gross quarterly sales on the business of land transportation operated within the territorial jurisdiction of Davao City, by any person, company or corporation, this includes ACs, TPUs, PUs, THs, Cs, & TAXIs.
105. Livery and boarding stables 30.00 p.a.
106. Livery stables or garage for automobiles, jeeps or trucks used for business purposes. 50.00 "
107. For one jukebox:
- (a) Select-o-matic 100 plays 100.00 p.a.
- (b) Similar amusement devices 30.00 "
108. Horse drawn caretela, calesa or any similar means of transportation for hire 30.00 "
109. Transportation by Tricycle for hire per unit 12.00 "
110. Proprietorship of Push and Pull Cart, any size, for hire per unit 10.00 "
111. Bicycle drawn cart or carreton 10.00 "
112. Bicycle registration 1.00 "
113. Bicycle or carreton plate 1.00 "
114. Permit fee to drive any animal drawn vehicle, each 1.00 "
115. Possession of a dog or fighting cock, each 1.00 "
116. Slaughter fee for each horse or carabao 20.00 "

Ordinance No. 123, series of 1960, continued:

117. Transfer of business from one place to another ₱ 5.00 p.a.
118. All other business not mentioned in this ordinance ^{except} those upon which the City is not empowered to tax 10.00 "

Title II - Additional fees on Cinematographs, Theaters, Vaudaville companies, Theatrical Shows and Boxing Exhibitions.

SECTION 1. - Additional Fees: In addition to the fees paid by cinematographs, theaters, vaudaville companies, theatrical shows and boxing exhibitions, etc., there shall be collected from the places of amusement which are specified above, the amount of ₱0.05 fees on the price of every admission ticket sold by such enterprises regardless of price per ticket ₱ 0.05 ^{(a) Amended by Ord. No. 248, S. 1960, g}
(b) Amended by Res. 786, 1964 (Ord. 270)

SEC. 2. - Manner of payment: It shall be the duty of every proprietor, lessee, promoters, or operator of such cinematographs, theaters, vaudaville companies, theatrical shows, and boxing exhibitions to provide himself with tickets serially numbered, and to furnish the City Treasurer's Office with copies of the statement he files with the Bureau of Internal Revenue showing the serial numbers of tickets sold during the week-end.

The payment of the corresponding fees herein imposed should be made to the City Treasurer every Monday following every week-end. The City Treasurer is hereby authorized to promulgate rules and regulations for the effective collection of the above-mentioned fees.

SEC. 3. - Exception: Fees herein prescribed shall not be paid where the admission fees or charges are entirely collected for and in behalf of any charitable, religious association or educational institution, otherwise the fees herein prescribed will be imposed.

Title III - Graduated tax on the Quarterly Sales or Receipts of Merchants engaged in wholesale or Retail Business, including importers and/or manufacturers.

SECTION 1. - The City Treasurer shall collect tax at the rate of 1% based on the quarterly gross sales or receipts of Merchants engaged in wholesale or Retail business including importers and/or manufacturers. ^{Amended by Ord. No. 10, S. 1961 g}

Provided, however, that (1) all dealers or merchants engaged in the business of selling gasoline, oil, kerosene and (2) in the buying or selling copra, ramie and hemp who are paying the monthly tax on said business pursuant to Title IV and V of this Ordinance, shall be exempt from paying the percentage tax provided under this section; and provided, further, that dealers in liquor and wine, whether native or foreign, and other articles subject to percentage tax which are subject to the taxes imposed under Title I shall also be exempt from the payment of the quarterly tax imposed herein. ^{Exempted subject to Sales Tax - Ord. No. 265, S. 1962}

SEC. 2. - Quarterly Report of Merchants: The tax provided for in Section 1 hereof shall be payable at the end of each calendar quarter in the amount lawfully due on the business transacted during each quarter; and it shall be the duty of every merchant engaged in the whole or retail business including the importers and manufacturers within twenty (20) days after the end of each calendar quarter, to make a true sworn and complete return of the amount of the gross sales, receipts, or gross value of the output actually removed from the store, factory or warehouse during the preceding calendar quarter and pay the tax thereon.

Title IV - Municipal License Tax on the Business of Buying and/or Selling of Copra, Ramie and/or Hemp and other allied fibers and for other purposes.

Ordinance No. 123, series of 1960, continued:

SECTION 1. - Permit and License: No person, firm or corporation shall engage in the business of buying and/or selling copra, ramie and/or hemp and other allied fibers or shall keep, hold or store at the place of business, bodega or elsewhere within the jurisdiction of the City of Davao, copra, ramie and/or hemp, or both, without first having obtained a permit from the City Mayor and license from the City Treasurer. Provided, however, that no persons shall be required to obtain a license to have, keep, hold, or store for his own use the following limited quantities:

Copra	99 kilos
Ramie	99 "
Hemp	99 "

SEC. 2. - Taxes on Merchants who are also Exporters and/or Shippers: - For the purpose of this section, the permit shall be granted every year and license tax shall be paid as follows:

(a) In the case of merchants who are also exporters and/or shippers:

- (1) Storage of Baled Hemp, other allied fibers and/or ramie....P0.35 per bale
- (2) Storage of Copra per 100 kilos20 " 100s
kilos

which shall be based upon the sworn statement by the manager or proprietor stating the actual number of hemp or ramie and other allied fibers stored in bales at P0.35 per bale and the number of kilos of copra at P0.20 per 100 kilos.

SEC. 3. - Mode of Determining Amount of Tax: (a) In order to determine the amount of tax from the business of copra, ramie and/or hemp, and other allied fibers or any persons in charge of the business shall submit, within the first 20 days of the next succeeding month, a sworn statement in duplicate to the City Treasurer of the quantity of copra, ramie, and/or hemp and other allied fibers actually stored and pay the corresponding amount of tax due or levied upon as provided for in Section 2 above.

SEC. 4. - Time of Payment: The tax provided in this Ordinance shall be paid not later than the 20th of the next succeeding month. Any person firm or corporation who fails to pay the tax within the period prescribed above shall pay a surcharge of 20% of the original tax and such penalty shall be collected as part of the tax.

SEC. 5. - License of Merchants who do not Store: Buyers and/or Sellers of ramie, hemp and other allied fibers and/or copra who do not store or keep in bodega shall, before engaging in the business, first secure a permit from the City Mayor and pay the annual fee to the City Treasurer, payable quarterly:

License fee shall be paid as follows:

Classification of merchants who do not store or keep in
bodega Ramie, hemp and other allied fibers and/or copra.

Class A - Merchants with capital of over P100,000.00	P 5,000.00
Class B - " " " from P50,001 to P100,000.00	3,000.00
Class C - Merchants having a capital of P30,001 to P50,000.00	2,000.00
Class D - Merchants having a capital of P15,000.01 to P30,000.00	1,200.00
Class E - Merchants having a capital of P10,000.00 to P15,000.00	700.00

Ordinance No. 123, series of 1960, continued:

Class F - Merchants having a capital of ₱5,000.00 to ₱10,000.00 ₱ 400.00

Class G - Merchants having a capital below ₱5,000.00 200.00

SEC. 6. - How to Determine Payment: - In order to determine under what classification of license a merchant falls, such merchant shall file a sworn statement of the amount of capital he has for the business with the City Treasurer, after which a permit from the City Mayor should be secured.

In the case of corporation, firms and/or partnerships, a certified copy of their articles of incorporations or articles of partnerships, as the case may be, shall be filed with the City Treasurer.

Any deduction in the capital of a merchant, corporation, firm or partnership during the year will not entitle them to a reduction of the license fee already paid. On the other hand, any subsequent increase in their capital for the year will correspondingly increase their license fee for the same year.

SEC. 7. - Merchant who also stores copra: - Any person, firm or corporation who shall engage in the business of buying and/or selling copra, ramie and/or hemp and other allied fibers at the same time keeping, holding, or storing at his place of business, bodega, or elsewhere his copra, for the business before selling or disposing shall pay the license only for the business of engaging in buying and/or selling copra, ramie and/or hemp, provided that they shall be subject to the payment of 1% tax based on gross quarterly sales.

Title No. V - Merchants buying and/or selling palay or rice or corn grains or coffee seeds.

SEC. 1. - License of merchants of the above named category shall before engaging in the business, first secure a permit from the City Mayor and pay the corresponding annual license fee to the City Treasurer, and may be paid quarterly:

Class of Merchants

Class A - Merchants with capital of over ₱50,000.00 ₱ 2,000.00

Class B - Merchants with capital of over ₱30,000.00 but less than ₱50,000.00 1,500.00

Class C - Merchants with capital of over ₱20,000.00 but less than ₱30,000.00 1,200.00

Class D - Merchants with capital of over ₱10,000.00 but less than ₱20,000.00 800.00

Class E - Merchants with capital less than ₱10,000.00 but over ₱5,000.00 400.00

SEC. 2. - How to Determine Payment: - In order to determine under what classification of license a merchant falls, such merchant shall file a sworn statement of the amount of capital he has for the business with the City Treasurer, after which a permit from the City Mayor should be secured.

In the cases of corporations, firms or partnerships, a certified copy of their "Article of Partnership" as the case maybe, shall be filed with the City Treasurer.

"Any reduction on the capital of a merchant, firm, partnership or corporation during the year will not entitle them to a reduction of the license fee already paid on the other hand, any subsequent increase of their capital will correspondingly increase their license fee for the same year.

Ordinance No. 123, series of 1960, continued:

Title VI - Tax on the sale of Gasoline, Petroleum or Kerosene and Crude Oil.

SEC. 1. - There shall be levied on the business of selling the following refined and manufactured mineral oils and other motor fuels, the following tax:

- (a) Kerosene or petroleum, per liter of volume capacity ₱ .005 (1/2) centavo)
- (b) Lubricating oils, per liter of volume capacity ₱ .015 (1-1/2) centavo)
- (c) Naptha, gasoline, and all other similar products if distillation per liter of volume capacity ₱ .02
- (d) Denatured alcohol to be used for motor power, per liter of volume capacity ₱ .0025 (1/4 centavo)

SEC. 2. - The sale of the above-mentioned oils shall be exempt from tax if they are used exclusively in agriculture and aviation by persons or corporations, but this exemption shall not apply to citizens and corporations of foreign countries which do not grant similar exemption to citizens and corporations of the Philippines. To be entitled to exemption, the affidavit of the person or corporation to which the oils are sold and two disinterested persons shall be attached to the monthly statement of sale hereinafter provided;

SEC. 3. - Retailers of the above-mentioned oils are exempted from the payment of the tax herein imposed, provided that they purchase their stocks from the local wholesalers. Those retailers are, however, subject to the license fee on their quarterly sales or receipts under Title III, Section I of Ordinance No. 78, series of 1948;

SEC. 4. - The tax imposed herein shall be paid monthly and the payment shall be made, without penalty, within twenty (20) days after the end of each month, during which the dealer shall submit a sworn statement of his sales. To avail of the exemption provided in Section 2, hereof, the affidavit referred to therein shall be attached to, and considered as part of, the statement.

Title VII - Annual License Fees for Keeping or Storage of Combustible Materials.

SEC. 1. - Annual License Fee: - Before a permit may be granted for the keeping or storage of combustible materials, in accordance with the provisions of Ordinance No. 25, S-1957, an annual license fee shall be paid to the City Treasurer, according to the following:

Calcium Carbide:

- Not more than 100 cases of 240 pounds each ₱ 50.00
- Over 100 cases of 240 pounds each, but not more than 150 cases 100.00
- Over 150 cases of 240 pounds each, but not more than 200 cases 150.00
- Over 200 cases of 240 pounds each, but not more than 250 cases
- Over 250 cases of 240 pounds each

1946. Flammable Gas such as Acetylene, Hydrogen, etc. - Ord. No. 366, S. 1962.

Ordinance No. 123, series of 1960, continued:

Gasoline or Alcohol Motor Fuel:

Not more than 500 gallons	50.00 p.a.
Over 500 gallons but not more than 1,000 gallons	75.00 "
Over 1,000 gallons but not more than 2,000 gallons	120.00 "
Over 2,000 gallons but not more than 3,000 gallons	180.00 "
Over 3,000 gallons but not more than 4,000 gallons	240.00 "
Over 4,000 gallons but not more than 5,000 gallons	300.00 "
Over 5,000 gallons but not more than 50,000 gallons	800.00 "
Over 50,000 gallons but not more than 200,000 gallons	1,250.00 "
Over 200,000 gallons but not more than 500,000 gallons	2,250.00 "
Over 500,000 gallons	3,000.00 "

Petroleum or Kerosene:

Not more than 500 gallons	50.00 p.a.
Over 500 gallons but not more than 3,000 gallons	100.00 "
Over 3,000 gallons but not more than 10,000 gallons	175.00 "
Over 10,000 gallons but not more than 30,000 gallons	225.00 "
Over 30,000 gallons but not more than 100,000 gallons	335.00 "
Over 100,000 gallons but not more than 200,000 gallons	400.00 "
Over 200,000 gallons but not more than 300,000 gallons	500.00 "
Over 300,000 gallons but not more than 400,000 gallons	750.00 "
Over 400,000 gallons but not more than 500,000 gallons	850.00 "
Over 500,000 gallons but not more than 600,000 gallons	1,000.00 "
Over 600,000 gallons but not more than 700,000 gallons	1,200.00 "
Over 700,000 gallons but not more than 900,000 gallons	1,450.00 "
Over 900,000 gallons	1,650.00 "

Other Highly Combustible Materials:

Not exceeding 1,000 gallons	50.00 p.a.
Not exceeding 1,000 kilos	100.00 "
Over 1,000 gallons	100.00 "
Over 1,000 kilos	100.00 "

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Ordinance No. 123, series of 1960, continued:

Less Highly Combustible Materials:

Not exceeding 1,000 gallons	50.00 p.a.
Over 1,000 gallons	100.00 "
Not exceeding 5,000 kilos	50.00 "
Over 5,000 kilos	100.00 "

Cinematograph Films:

With a total aggregate weight of not more than 500 kilos	75.00 p.a.
With a total aggregate weight of more than 500 kilos but not more than 2,000 kilos	200.00 "
With a total aggregate weight of more than 2,000 kilos	400.00 "

Provided, that combustible materials enumerated below and not exceeding the following quantities are hereby exempted from the payment of license fees as mentioned above:

1. Gasoline 1 drum
2. Kerosene 3 drums
3. Alcohol 1 drum
4. Crude Oil 2 drums
5. Diesel Oil and other less combustibles
fuel oils 3 drums
6. Tar 50 kilos
7. Matches 100 kilos
8. Celluloid 10 kilos
9. Kapok or Cotton 10 kilos
10. Fats & Veg. Oils 10 kilos - *Amended to 500 kilos Ord 313, 1960*

Provided, however, that in the case of any of the combustible materials mentioned in item 1 to 5 above not more than 10 gallons thereof may be stored in tin containers.

And Provided, Further, that the Chief of the Fire Department shall have supervision of the location and the manner of storing the afore-mentioned quantities of combustible materials which are herein exempted from the payment of license fees, and if, in his judgement the location and manner of storing any of such combustible materials in dangerous, he shall issue an order to the possessor, directing that the same be stored properly or removed within twenty-four (24) hours.

SEC. 2. - Exemption: All storage of combustible materials used by the United States Armed Forces of any branch depot of sub-division thereof, or any office or agency of the Government of the Republic of the Philippines are exempted from the taxes imposed by this Title.

SEC. 3. - Definition of Terms: The term highly combustible materials shall include calcium, alcohol, benine, naptha, turpinetine, gasoline, carbide, kerosene and other gravity hydrocarbon derivatives, either solid liquid or mixture thereof, or any other substances which ignites at low temperature when exposed to the heat or open flame.

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Ordinance No. 123, series of 1960, continued:

The less highly combustible materials shall include tar, fats and vegetable oils, fuel oil, bunker oil, matches and other hydrocarbon derivatives, either solid or liquid, or mixtures thereof, which do not ignite easily when exposed to heat or open flame.

The "combustible materials" shall include all the substances included above under classification of highly combustible and less highly combustible materials.

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Title VIII- Fees for the Conveyance or Transportation of any Explosives or Hazardous Inflammable Liquid within the Limits of the City of Davao.

SECTION 1. - Permits: - It shall be unlawful for any person, firm, or corporation to convey or transport any explosives or hazardous inflammable liquid within the City limits of the City of Davao, in any truck, railway, car, vessel, boat or craft without first having obtained a permit from the City Mayor for said conveyance duly approved by the Chief of the Fire Department.

SEC. 2. - Definition of Hazardous Inflammable Liquid: For the purpose of this Title, a hazardous inflammable liquid shall be considered to include gasoline, oils and kerosene.

SEC. 3. - Fees: For every permit granted under the provisions of this Title, the following fees shall be paid quarterly:

- | | |
|---|------------|
| (a) Cargo trucks a payload capacity of 20-50 gallon drums or equivalent | 40.00 p.a. |
| (b) Over 20-50 gallon drums or equivalent | 48.00 " |
| (c) Tank trucks, tank trailers, and semi-tank trailers having a capacity of: | |
| 1. 6,000 liters or less | 40.00 p.a. |
| 2. Over 6,000 liters | 48.00 " |
| (d) Self-propelled or non-self-propelled package | 40.00 " |
| (e) Self-propelled or non-self propelled bulk craft | 48.00 " |

Provided, that fuel for consumption, conveyance storage tanks, or deposited on the conveyance, up to 150 gallons, shall be permitted without securing permit or paying the above fees. Provided, Further, that the government of the Republic of the Philippines and/or any of its political subdivisions, the United States Army and Navy, United States Embassy and members of its staff, diplomatic and consular representatives and officers of foreign powers are hereby exempted from the imposition of the fees mentioned therein.

Title IX - Service Fee by Different Offices of the City Government.

SECTION 1. - The different offices of the City Government are hereby authorized to charge of services rendered by them to private persons for furnishing true copies, or written information, from their officials records otherwise prohibited by existing rules and regulations.

SEC. 2. - The following charges shall be collected by the City Treasurer for services rendered by the different offices and departments of the City.

1. For furnishing upon request of a true copy of officials records:

- (a) For every One Hundred (100) words or fraction thereof,
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Ordinance No. 123, series of 1960, continued:

- typewritten (excluding certification and notation) but in no case shall be less than ₱1.00 per certificate issued ₱ 0.20
- (b) Where the copy to be furnished is in printed form in whole or in part, for each page (double this fee if there are two pages in a sheet) 1.00
- (c) For each certificates of correctness (with seal of Office) written on the copy attached thereto 2.00
- (d) For certifying copies of any paper, record, decree, judgment or entry of which any person is entitled to demand and receive a copy) in connection with judicial proceedings) for each one hundred words, but in no case shall be less than One Peso (₱1.00) per certificate issued 0.20
2. For furnishing written statement of certification of official records and/or document, or either than Internal Revenue matter 2.00
3. For each burial permit issued with the exception of indigent persons 2.00
4. For every square meter, or fraction thereof, of the municipal cemetery 25.00
5. For permission to exhume a cadaver from any of the cemeteries in the City 6.00
6. For permit to transfer a cadaver from the City to any other place in the Philippines 1.00

TITLE X - DEFINITION OF TERMS

"Airline Establishment" includes all persons, natural or juridical who for compensation or profit, negotiate freight or other business for owners or places, or for the shippers or consignors, or consignees of freight, carried by plane.

"Air Cargo Service" includes all persons, natural or juridical, company, corporation or association, who for profit renders service for another, either in the collection or delivery of air cargos.

"Arrastre" as used in this Ordinance should mean the operation of receiving conveying and loading merchandise on piers or wharves.

"Boarding House" shall be defined as any house of the lesser class which accommodates tenants and provide them lodging and meals during their stay.

"Business Agents" (agents de negocios) includes all persons who acts as agents for others in the transaction of business with any public officer, as well as those who conduct collecting, or advertising for another.

"Carinderia" shall defined as any eatery or establishment where ready cooked foods are displayed for sale and served to the customers.

"First Class Carenderia" is one with accommodation of more than five (5) dining tables of an average size of one meter square.

"Second Class Carinderia" is one with accommodations of less than (5) dining tables with an average size of one square meter.

Ordinance No. 123, series of 1960, continued:

Note: Eateries using other long tables or counters shall continue using same, but said long tables and counters shall correspondingly measured accordingly.

"Clubs"

"First Class Club" one having restaurant and bar which serves all kinds of drinks and wherein all legalized games may be played.

"Second Class Club" is one which has a restaurant and a bar which serves only beer and/or soft drinks and wherein all legalized games may be played.

"Third Class Club" is one which has neither restaurant nor bar, but wherein all legalized games may be played: PROVIDED, however, that the above definition should not be construed to exempt from the payment of municipal licenses and taxes, the operation of the business or games mentioned therein, imposed by the existing ordinances.

"Commercial Broker" includes all persons, other than importers, manufacturers, producers, or bonafide employees, who for compensation or profits, sell or bring about sales or purchases or merchandise for other persons, or bring proposed buyers and sellers together or negotiate freights or other business, for owners of vessels or other means of transportation, or for the shippers or consignors or consignees, of freight carried by vessels or other means of transportation. The term includes commission merchants.

"Dockyards" are either places or buildings or structures where steamships, or motor launches or boats are build or constructed, overhauled or repaired.

"Hawker, peddler or justler" shall be defined as any person who either for himself or on commission travels from place to place within the City of Davao and sells his goods, merchandise, wares, soft drinks and other similar products by carrying them in trucks, automobiles or other kinds of motor vehicles, or vehicles drawn by animals, bicycles, or tricycles who sell only native vegetables, fruits or goods, personally carried by the peddler or hucksters shall be exempt from the payment of licenses imposed under this ordinance, except peddlers of jewelries and other luxury items.

"Hotel" under this ordinance shall be interpreted as a house usually of the first class providing lodging to the public especially to transient guests usually meals to its tenants.

"Ice Cream Factory" includes the manufacture of ice cream for sale or distribution to different customers, but shall not be deemed to include refreshment parlor, restaurants, hotels or boarding houses who freezes their own ice cream to be sold to their respective customers in their respective establishments, nor does the term include ice cream peddlers.

"Inn" is another version of a lodging house.

"Labor Contractor" is one who hires laborers in his own account to do piece of work for another party, contract price of which is on account of the contractor.

"LodgingHouse" a house where sleeping quarters are provided and lot, where keepers does not have an innkeeper's liability for the lodger's goods.

Ordinance No. 123, series of 1960, continued:

"Lumber Yards" shall include every place where lumber whether sawn or not is kept or stored for sale or for distribution.

"Manufacturer" includes every person who by physical or chemical process alters the exterior texture or form of inner substances of any raw materials or manufactured or partially manufactured products in such manner as to prepare it for a special use or uses to which it could not have been put in its original condition, or who by such process alters the quality of any such raw materials or manufactured or partially manufactured products so as to reduce it to marketable shape or prepare it for any of the uses of industry, or who by any such process combines any such raw materials with other materials or products of the same or different kinds and in such manner that the finished products of such process of manufacture can be put to a special use or uses to which such raw materials or manufactured or partially manufactured products in their original condition could not have been put and who in addition alters such raw materials or partially manufactured products, or combines the same to produce such finish products for the purpose of their sale or distribution to others and not for his own use or consumption.

"Money Lenders" includes all persons who make a practice of lending money for themselves or other at interest.

"Motel" Roadside hotel for brief sojourn of travelers.

"Mold" as used in Item 22, Section 2 of this Title shall mean any iron metal causing of frame used to enclose or contain the entire tire in the process of cooking or processing the fire being recapped or vulcanized.

"Occupation" is defined as one's principal business in life, or in which one's time is devoted or in which one is regularly or habitually engaged.

"Optical Goods" shall include glasses, lenses, frames, and anything that will be put in front of the eyes that will protect the eyes and improve the vision.

"Passenger Recruiting Agents" are persons or companies or corporation, entities, who recruit or look for passengers or cargo for shipping or steamship companies and who for such services shall receive commission.

"Proprietorship" one's legal right or exclusive title to anything, whether in actual possession or not.

"Real Estate Broker" includes all persons whose business it is, for themselves as such brokers or for other brokers to negotiate purchases or sale of lands, buildings or interests therein or to negotiate loans secured by lands or interests therein, or to rent real estate for others or to collect rents thereon.

"Retail General Merchandise" under this ordinance shall be defined as any small store bigger than sari-sari, which sells in small quantities prime commodities, including dry goods, "Bugas" and other articles not subject to pay a separate license under this ordinance and whose capital exceeds ₱1,000.00.

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Ordinance No. 123, series of 1960, continued:

"Restaurant" under this ordinance shall be interpreted any eatery or establishment which prepares and serves and offers for sale, different kinds of foods to the public, upon order of the customers.

"Retail dealer in liquor" includes every person, except a retail dealer in native wine, who for himself or on commission sells or offers for sale wine or distilled spirits (Other than denatured alcohol) in quantities of five liters or less at any one time and not for sale.

"Servicing" as used in this ordinance shall mean the washing, cleaning and/or flushing with oil or water or any washing materials, of jeeps, automobiles, trucks or any kind of motor powered vehicles, except repair of same.

"Stevedore" as used in this ordinance should be interpreted as one who takes responsibility of the unloading and loading of a vessel in port.

"Sari-Sari" under this ordinance shall be defined as any small store selling in small quantities prime commodities excluding dry goods and "bugas" rice or corn and whose capital does not exceed ₱1,000.00.

"Stock Broker" includes all persons whose business as it is, for themselves or others to negotiate purchases or sales of stocks, bonds, exchange, bullion, coined money, bank notes, promisory notes and other securities.

"Shipping Establishment" includes all persons, natural or juridical who for compensation or profit, negotiate freight or other business for owners of vessels, or for the shippers or consignors or consignees of freight carried by vessel. The term does not include common water carriers who are subject to the supervision of the Public Service Commission.

"Trade" under this ordinance shall be defined as the business one practices or the work in which one engages regularly; or any gainful employment as a means of livelihood.

"Vulcanizing and/or recapping plants or establishments" shall be construed to include every building or portion thereof, and the apparatus used therein for the purpose of effecting the process of vulcanization and/or recapping which is the act of process of imparting caoutchoue, guttapercha, or the like, or process of imparting greater elasticity, durability, hardness or other qualities by heating with and/or thru electric power with the use of sulphur or other substances under pressure."

"Wholesale dealer in liquor" comprehends every person who for himself or on commission sells or offers for sale of wines or distilled spirits in larger quantities than five liters at any one time, or who sells or offers the same for the purpose of resale, irrespective of quantity, whether foreign or native or non-fermented.

TITLE XI - Repealing Provisions

Any ordinance or any provision thereof, inconsistent with the provisions of this ordinance is hereby repealed.

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Ordinance No. 123, series of 1960, continued:

If any clause, sentence, paragraph or part of this ordinance shall be adjudged by any court of competent jurisdiction to be invalid, such judgment shall not affect, impair or invalidate the remaining provisions of said ordinance, but shall be confined only its operation to the clause, sentence, paragraph part thereof directly involved in the controversy.

/TITLE XII - General Penal Provisions

Any violation of this ordinance shall be punished by a fine of not more than Two Hundred Pesos (P200.00) or by imprisonment for not more than Six (6) months, or both such fine and imprisonment in the discretion of the court. If the violation is committed by a firm or corporation, the manager or managing director or person charged with the management of the business of such firm or corporation shall be criminally responsible therefor.

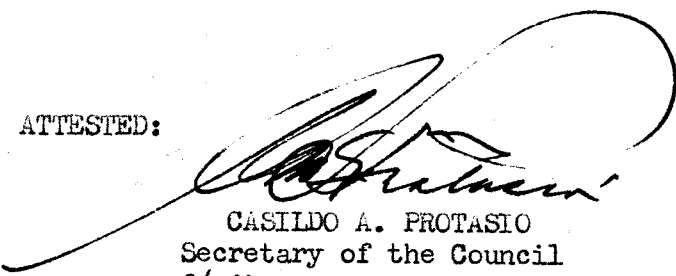
Effectivity

This Ordinance shall take effect on July 1, 1960.

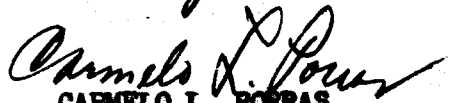
ENACTED: June 20, 1960.


FERMIN ABELIA
Vice-Mayor
Presiding Officer

ATTESTED:


CASILDO A. PROTASIO
Secretary of the Council
f/rjt.

APPROVED: June 30, 1960


CARMELO L. PORRAS
Mayor, City of Davao

ATTESTED:


MILAGROS C. NARTATEZ
City Secretary